

		Defendant challenges the sufficiency of the sixth cause of action for fraudulent inducement on the grounds that Plaintiff failed to allege fraud with the requisite specificity. Defendant contends that Plaintiff did not sufficiently allege specific facts, communications, exclusive knowledge, an actionable omission or concealment by Defendant. Further, Defendant argues that Plaintiff has failed to plead facts establishing a direct transaction or a duty to disclose. Finally, Defendant challenges the sufficiency of Plaintiff's punitive damages allegations. Plaintiff, however, did not file an opposition to the demurrer or motion to strike and failed to address any of the arguments that Defendant makes. The failure to oppose a demurrer may be construed as having abandoned the claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20 ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue").) In addition, it is axiomatic that the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal. App. 4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue"); <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal. App. 4th 507, 529 ("failure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot"); <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal. App. 4th 1409, 1424 (issue is impliedly conceded by failing to address it).) Accordingly, the court finds Plaintiff's failure to substantively oppose any of the arguments raised in the demurrer and motion to strike an abandonment of the issues and a concession that Defendant's demurrer/motion has merit. Moving Defendant to give notice.
5	Hoang vs. Toyota Motor Sales, U.S.A., Inc.	OFF CALENDAR
6	Nguyen vs. TD Bank	OFF CALENDAR